

LAW & MOTION CALENDAR
TENTATIVE RULINGS

September 11, 2026

09:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
4	Dunn vs. Suzuki Motor USA, LLC 2025-01477567	Plaintiff's Motion for Approval of Class Settlement The Court has reviewed the supplemental briefing filed in response to the previous minute order. The motion for preliminary approval of class action settlement is GRANTED. The motion for final approval shall be heard on February 19, 2027 at 9:00 a.m. in Department CX101. Moving papers are due 16 court days before the hearing. Please submit a revised proposed order that conforms to the foregoing, includes the date of the final approval hearing, and updates all dates that are calculated in reference to the date preliminary approval is granted.
5	Johnson vs. 1130 W. La Palma Ave, Inc. 2024-01436998	Plaintiff's Motion for Approval of Class Settlement Plaintiff’s motion for preliminary approval of class action settlement is CONTINUED to November 6, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before October 26, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all

	changes, deletions and additions must be submitted as well. <i>As to the Settlement:</i> 1. Are there any other pending actions, whether class, individual, or PAGA (including in the pre-filing LWDA stage) that may be affected by this settlement? 2. How large a sample of time and pay records did Defendant turn over (e.g., 10%)? 3. Was an expert retained to assist in valuing the case? If so, please provide a CV. 4. Did counsel interview any class members other than Plaintiff to value the non-record claims? 5. Did Defendant turn over copies of its meal and rest break policies? If so, were the written policies compliant with applicable law? 6. For the meal break claim, counsel refers to “Defendant’s contention that the claim lacked merit.” Why did Defendant contend the claim lacked merit? What did the evidence show? 7. What did the evidence show regarding the reimbursement claim? Were employees indeed required to use their vehicles or cell phones for work purposes without reimbursement? 8. Per § 5.1 of the agreement, Plaintiff will separately settle his individual claims, and the individual settlement is a material term of the class settlement. Please provide a copy of Plaintiff’s individual settlement. All agreements between the parties bear on the Court’s fairness analysis, and the individual settlement here is expressly a term of the class settlement. 9. At final approval, please submit contemporaneously made billing records for attorney’s fees and costs. The Court will not be inclined to award an amount of fees and costs greater than the amount stated in the notice. 10. At final approval, please submit billing records for administrative costs. The Court will not be inclined to award administrative costs in an amount greater than the amount stated in the notice. 11. Because he has provided a declaration in support of his requested enhancement payment, Plaintiff need not provide one at final approval. 12. At final approval, the administrator is to provide a high, low, and average for individual settlement payments, along with Plaintiff’s individual payout.
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		<i>As to the Notice:</i> 1. Please include both opt-out and workweek dispute forms with the notice. 2. Per point 6 on page 3 of the notice, “You are not a Class Member if you already have resolved the claims asserted in this lawsuit, whether by settlement or a separate legal proceeding (i.e., another lawsuit, settlement agreement, and or a valid and enforceable waiver).” The definition of the class in the settlement agreement has no such exclusions. Please explain this discrepancy. 3. Does notice need to be given in any languages other than English? 4. If any changes are made to the settlement agreement, please make corresponding changes to the notice. 5. The font size in the actual notice may not be smaller than the font size in the proposed notice provided to the Court.
6	Senator vs. International Financial Solutions, LLC 2025-01480074	Plaintiff's Motion for Approval of Class Settlement There is no tentative ruling on Plaintiff’s motion for preliminary approval of class action settlement. The MOU which serves as the settlement agreement in this case does not include any provision for calculating the distribution of PAGA penalties to the affected aggrieved employees. Lacking such a provision and Defendant’s so-called “radio silence,” the Court questions whether there is authority allowing it to rewrite/add to the terms of the MOU. Also, the Court will need to review the individual settlement agreement incorporated into the MOU. Plaintiff and Defendant are ordered to appear (either in person or via Zoom) at the status conference and hearing on September 11, 2026 at 9:00 a.m. to discuss these issues, as well as Defendant’s apparent failure to cooperate in the settlement agreement process.
7	Stewart vs. Irv’s Burgers LLC 2025-01493662	Plaintiff's Motion for Approval of PAGA Settlement The Court has reviewed the supplemental briefing filed in response to the prior minute order. The motion for approval of the parties’ PAGA settlement is GRANTED. The Court finds the parties’ settlement is “fair, reasonable, and adequate in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (<i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 72.) The Court approves the following distributions: